

25SMCV04599 25SMCV04599

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Case Number: 25SMCV04599 Hearing Date: August 13, 2026 Dept: M

CASE NAME: Jones, et al.,

v. Annenberg Foundation, et al.

CASE NO.: 25SMCV04599

MOTION: Motion

for Attorneys' Fees

HEARING DATE: 8/13/2026

Legal

Standard

With respect to attorney fees

and costs, unless they are specifically provided for by statute (e.g., CCP §§ 1032, et seq.), the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. (CCP § 1021.) “Under Code of Civil Procedure section 425.16, subdivision (c), any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees. The fee-shifting provision was apparently intended to discourage such strategic lawsuits against public participation by imposing the litigation costs on the party seeking to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances. The fee-shifting provision also encourages private representation in SLAPP cases, including situations when a SLAPP defendant is unable to afford fees or the lack of potential monetary damages precludes a standard contingency fee arrangement.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.)

Any notice of motion to claim

attorney fees as an element of costs under shall be served and filed before or at the same time the memorandum of costs is served and filed; if only attorney fees are claimed as costs, the notice of motion shall be served and filed within the time specified in CRC 3.1700 for filing a memorandum of costs.¿(CRC 3.1702; *Gunlock Corp. v. Walk on Water, Inc.* (1993) 15 Cal.App.4th 1301, 1303, fn. 1.)

“It is well established that

the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. [Citation.]” (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623 624.) The fee setting inquiry in California ordinarily “begins with the ‘lodestar’ [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.) “[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (*Margolin v. Reg’l Planning Comm’n* (1982) 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See *Serrano v. Priest* (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys’ fees award].) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (*Id.* at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (*Mountjoy v. Bank of Am.* (2016) 245 Cal.App.4th 266, 271.)

In challenging attorney fees as

excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.¿(*Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc.* (2008) 163 Cal.App.4th 550, 564.)¿General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (*Ibid.*)

Analysis

Defendants Steve Ballmer and Connie

Ballmer (collectively, the “Ballmers”); the FireAid Board of Trustees and individual members Gregory Adams, Nicole Avant, Rochelle (Shelli) Azoff, Rick Caruso, Gillian Zucker, and FireAid, Inc. (collectively, “FireAid Defendants”); The Annenberg Foundation, Katrina Ashley, Amber Lee, and Chris Ko (collectively, the “Annenberg Defendants”); Live Nation Worldwide, Inc. (“Live Nation”); California Community Foundation, Department of Angels, Miguel Santana, and Evan Spiegel (“CCF Defendants”); Irving Azoff, Gerun Riley, and Isabel Acosta move for an award of attorneys’ fees and costs in the amount of \$216,866.65 against Plaintiff Patricia Jones.

Defendants are entitled to their

reasonable attorneys’ fees pursuant to their successful special motion to strike under section 425.16. Defendants explain that they seek the fees and costs they incurred in connection with the anti-SLAPP motion and this fee motion. Because Defendants retained separate counsel, Defendants coordinated briefing among their counsel to avoid unnecessary duplication. (Schwartz Decl. ¶ 11.) Rather than filing separate anti-SLAPP motions or having each firm duplicate the same research and drafting, Defendants designated Quinn Emanuel to take the lead on drafting the consolidated anti-SLAPP motion. (Id.) Quinn Emanuel handled the principal drafting, legal analysis, and coordination necessary to present a consolidated motion on behalf of all Defendants. Counsel for the other Defendants provided targeted input. This allowed Defendants to present a coordinated position while reducing overlapping work. Defendants presented arguments as to the first and second prongs. This work required review and analysis of the Second Amended Complaint (“SAC”), Plaintiff’s opposition papers and exhibits, declarations, public materials referenced in the pleadings, FireAid’s website materials, FireAid’s grantmaking materials, the Latham & Watkins report, and legal authorities concerning anti-SLAPP protection for charitable solicitations and related activity. (Id. ¶ 9.) Defendants also addressed Plaintiff’s commercial-speech-exemption argument and Plaintiff’s request for leave to amend. (Id.) Defendants counsel also prepared their reply papers; prepared for the June 11, 2026 hearing; attending the hearing; reviewed the Court’s tentative and final ruling; and prepared the notice of ruling and proposed judgment. (Id.)

In general, and as discussed below, the Court believes the requested claimed hours are excessive in light of the

overlapping counsel and the vaguely supported time entries. Each counsel claims to have contemporaneous tracking, but no actual time records are submitted or a breakdown of tasks by attorney. The Court is also concerned that while one firm took the lead on the motion, it appears other firms would have performed duplicative legal research and writing. In effect, two motions were drafted by approximately a dozen attorneys.

FireAid Defendants show they incurred \$72,138 in fees and costs, representing 159.3 hours of attorney time. Counsel at Quinn Emanuel LLP show their reasonable insurance set rates of \$500 per hour for partners, \$420 per hour for associates, and \$200 per hour for paralegals. (Schwartz Decl., ¶ 4.) The Court finds these rates to be reasonable in light of counsel's experience and education. As noted, Quinn Emanuel performed the bulk of the work on the anti-SLAPP motion, with Julian T. Schoen primarily researching and drafting the motion. (Id. ¶¶ 5(c), 11.) Counsel demonstrates that Schwartz spent 55.2 hours on the anti-SLAPP and 10.2 hours on the fee motion; Bonfigli spent 6.8 hours on the anti-SLAPP and 14.9 hours on the fee motion; and Schoen spent 72 hours on the anti-SLAPP and 0.2 hours on the fee motion.

The Court recognizes the motions were complex, but the hours still appear excessive, especially since there is no specific breakdown but essentially block billing on the entire motion. As such, the Court would reduce the reasonable fee to \$49,400.00, which would be 50 hours by Schoen, 40 hours by Schwartz and 20 hours by Bonfigli.

The CCF Defendants show that their counsel at Wilmer Cutler Pickering Hale and Dorr LLP spent a total of 49.3 hours on the two motions, for a fee of \$57,060.15. Counsel states that the hourly rates are \$1,325 for Kaylene Khosla, \$1,530 for Simon Kress, and \$1,900 for Matthew Benedetto and Christopher Casamassima. (Casamassima Decl., ¶ 4.) The Court finds that the requested rates are somewhat excessive given the prevailing local rates. Under the presented record, the court finds that reasonable award \$850 for associates, \$950 for of counsel, and \$1,250.00 for partners. Wilmer Counsel explain the work they performed in this action. Counsel originally prepared a demurrer in this action, which was incorporated by Quinn Emanuel into the anti-SLAPP motion. (Id., ¶ 5.) Further, counsel reviewed and participated in the briefing process for the anti-SLAPP motion. (Id., ¶ 6.) Counsel claims to have worked on the fee motion, including on the notice of motion and motion, supporting memorandum, declarations, exhibits, and

proposed order; reviewing any opposition; preparing reply papers; and preparing for and attending the hearing on the fee motion. (Id., ¶ 8.) Casamassima claims 13 hours spent on the anti-SLAPP and 0.3 hours on the fee motion; Benedetto claims 8 hours on the anti-SLAPP, and 0.3 hours on the fee motion; Kress claims 16.9 hours on the anti-SLAPP and 1.5 hours on the fee motion; and Khosla claims 5.8 hours on the anti-SLAPP and 3.5 hours on the fee motion. The Court finds that the amount of time spent on the motion was duplicative and excessive in light of the substantially overlapping work claimed by other counsel in this action. Based upon the totality of the record, the Court finds that a reasonable fee award for the CCF defendants would be \$25,750.00.

The

Annenberg Defendants show that their counsel at Greenberg Traurig LLP spent a total of 46.7 hours on the two motions, for a fee of \$47,043.50. Counsel Gershman charges an hourly rate of \$1,425.00 and Gharibian charges an hourly rate of \$895.00. The Court finds these rates to be slightly excessive given the prevailing local rates. The Court will set the associate's hourly rate at \$850.00, and the shareholder's fee at \$1,250.00. Greenberg counsel claim to have given focused input into the anti-SLAPP motion, as well as fees incurred for independent legal research and analysis of documents that were ultimately incorporated into the anti-SLAPP motion. (Gershman Decl., ¶ 6.) Counsel provide a breakdown of work performed on the anti-SLAPP. (Id., ¶ 7.) Greenberg counsel prepared their declaration and reviewed their fee records in support of the fee motion. (Id., ¶¶ 10-11.) Gershman claims 8.9 hours on the anti-SLAPP, and 1 hour on the fee motion; and Gharibian claims 31.6 hours on the anti-SLAPP and 5.2 hours on the fee motion. Again, the Court finds that the amount of time spent on the motion was duplicative and excessive in light of the substantially overlapping work claimed by other counsel in this action. Based upon the totality of the record, the Court finds that a reasonable fee award for the Annenberg defendants would be \$25,785.00.

Live Nation shows that its counsel DTO

Law incurred \$7,920.00 in fees. DTO Counsel show their reasonable rates of \$850 for Delgado and \$650 for Malick. DTO counsel show that Delgado spent 0.1 hours on the anti-SLAPP and 0.5 hours on the fee motion; and that Malick spent 9 hours on the anti-SLAPP and 2.4 hours on the fee motion. The Court finds the requested fees to be reasonable in light of their claimed contribution to the subject motions. (Malick Decl., ¶¶ 12-16, 18.) Therefore, the Court will award Live Nation's fees as noticed. Of note, this type of fee request is what the Court would expect from a secondary firm's

contribution to the anti-SLAPP and fees motions.

Defendant Azoff shows that his counsel at O'Melveny & Myers LLP spent a total of 22.8 hours on the two motions for a total fee of \$16,220.00. Lucas charged \$850 per hour and Donohue \$650 per hour. The Court finds these rates to be reasonable in light of counsel's experience and education. Lucas claims 4.5 on the anti-SLAPP and 2.5 hours on the fee motion; and Donohue claims 12.8 hours on the anti-SLAPP and 3.0 hours on the fee motion. The Court finds the hours spent to be slightly duplicative and excessive in light of their claimed contribution to the subject motions, as well as the substantially overlapping work claimed by other counsel in this action. (Lucas Decl., ¶¶ 9-13.) Based upon the totality of the record, the Court finds that a reasonable fee award for Azoff would be \$10,550.00.

Riley and Acosta show that their counsel at Nixon Peabody LLP incurred \$16,485.00 in fees. Counsel Brian charges a reasonable hourly fee of \$1,050.00. Brian claims to have spent 15.7 on the anti-SLAPP. Brian does not state the time spent on the fee motion. Presumably, he spent some time drafting his declaration. The Court finds that some of the time spent on the anti-SLAPP would be excessive and duplicative in light of his claimed contribution to the subject motions, as well as the substantially overlapping work claimed by other counsel in this action. (Brian Decl., ¶ 5.) Based upon the totality of the record, the Court finds that a reasonable fee award for Riley and Acosta would be \$11,500.00, which would include drafting the declaration and attending the hearing.

The motion is unopposed. Plaintiff therefore fails to meet her burden to make specific objections to the claimed time entries.

Accordingly, the motion is GRANTED.

Fees are awarded to Defendants as noted above.